4. The Court will retain jurisdiction over this action and the Parties to enforce the terms of the PAGA Settlement agreement.
5. No appearance is required at the hearing on July 22, 2026.

15. 9:00 AM CASE NUMBER: C24-01022
CASE NAME: MICHAEL RAY VS. SIMPSON STRONG-TIE CO., INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM**
FILED BY: RAY, MICHAEL
****TENTATIVE RULING:****
Summary

This tentative ruling is for Lines 15 and 16. Plaintiff Michael Ray ("Plaintiff") individually and on behalf of all others similarly situated moves for Final Approval of the Class Action Settlement ("Settlement") with Defendant Simpson Strong-Tie Co., Inc. ("Defendant"). Plaintiff also seeks approval of its motion for attorney's fees, costs and service award. These motion are **granted**. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

The Court granted preliminary approval of this Settlement on October 23, 2025, provisionally certifying the class and directing notice to the more than 5,000 Settlement Class Members. The Settlement resolves claims against Defendant Simpson Strong-Tie Co., Inc. arising from a data security incident and operates on a claims-made basis with no aggregate cap. Defendant has agreed to pay all Notice and Administrative Expenses, the Fee Award and Expenses, and Service Awards. The Settlement Class consists of 5,746 individuals who were provided notice achieving a 90.67% reach rate through postcard mailings following address verification and skip tracing procedures. No timely exclusion requests or objections were received, and 198 non-duplicate claims were submitted by the February 19, 2026 deadline, representing 3.45% of the class.

The Settlement provides three categories of benefits to eligible claimants.

- First, Settlement Class Members may claim up to $500 for documented ordinary out-of-pocket losses, including reimbursement for expenses incurred as a direct result of the Data Security Incident, fees for credit reports or credit monitoring, and attested lost time.
- Second, claimants may seek up to $5,000 for documented extraordinary out-of-pocket losses fairly attributable to the Data Security Incident.
- Third, all Settlement Class Members are eligible to receive two years of Identity Theft Protection and/or Credit Monitoring, including credit monitoring at all three major credit reporting agencies. Additionally, Defendant has implemented and will continue to maintain data security enhancements valued at over $957,000, including deployment of a Data Security Posture Management System, Zero Trust Endpoint Detection Security application, and increased phishing awareness training and testing.

The Settlement Administrator, Simpluris, Inc., shall process all approved claims and distribute Settlement Payments via mailed checks or electronic fund transfer within sixty days of the Effective Date or within thirty days of claim approval, whichever is later. The Settlement Administrator's total costs for services in connection with the administration of the Settlement, including fees incurred and anticipated future costs for completion of the administration, will be $18,000. Defendant shall be responsible for payment of all Settlement Administration costs.

Upon the Effective Date, all Settlement Class Members who have not validly requested exclusion shall be deemed to have fully, finally, and forever released, relinquished, and discharged the Released Parties from all Released Claims as defined in the Settlement Agreement. Settlement Class Members are hereby permanently barred and enjoined from instituting, commencing, or prosecuting any Released Claim against any of the Released Parties. This order, the Settlement Agreement, and the settlement reflected therein shall not be construed as an admission by or against Defendant or any other Released Party of any fault, wrongdoing, or liability, or of the validity of any Released Claim.

The Court finds that the Settlement is fair, reasonable, and adequate, and that the preliminary approval order should be made final. The Settlement is the product of arm's length negotiations between experienced counsel, provides substantial recovery for the class while avoiding significant litigation risks including class certification opposition, summary judgment motions, protracted discovery, trial, and appeals. The data security enhancements provide considerable additional value beyond the monetary relief.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

<u>Attorney fees and Costs</u>

Plaintiff seeks one-third of the total settlement amount as fees $240,000 relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Under these guidelines, the Court finds that the requested attorneys' fees and costs are fair and reasonable.

Settlement Class Counsel requests an aggregate award of $240,000 in attorneys' fees and $73,497.62 in costs. Counsel incurred 216.2 attorney hours in this litigation, equating to a base lodestar of $167,924.48, together with total expenses of $1,888.17. Applying a lodestar multiplier of 1.29 to account for the contingent nature of the representation, the complexity of the litigation, the substantial benefits obtained for the class, and the risks undertaken, yields the requested fee award of $240,000. The Court finds this multiplier and the resulting fee award to be fair and reasonable compensation for counsel's work in obtaining this substantial settlement.

The Court finds that the requested incentive award of $2,000 to the named Plaintiff and class representative is reasonable in recognition of the time, effort, and risk undertaken in prosecuting this action on behalf of the class. Under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved., and hereby approves this Service Award. Settlement administration costs of $18,000 are reasonable and are approved.

<u>Ruling</u>

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **<u>granted</u>**.
3. The motion for attorneys, costs, and service award is **<u>granted</u>**.
4. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
5. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
6. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance

statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. No appearance is required at the hearing on July 22, 2026.

16. 9:00 AM CASE NUMBER: C24-01022
CASE NAME: MICHAEL RAY VS. SIMPSON STRONG-TIE CO., INC.
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS**
FILED BY: RAY, MICHAEL
****TENTATIVE RULING:****

See Line 15.

17. 9:00 AM CASE NUMBER: C24-01297
CASE NAME: JOEL DE ALBA-PADILLA VS. STAND PETERSON
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: DE ALBA-PADILLA, JOEL JOSE
****TENTATIVE RULING:****

Summary

Plaintiffs, Joel Jose De Alba-Padilla and Gerald Keene, ("Plaintiffs") on behalf of themselves and all others similarly situated and aggrieved seek Preliminary Approval of a Class Action Settlement with Defendants Wesco International, Inc., Anixter Inc., Anixter International LLC, and Express Services, Inc. ("Defendants"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

The salient terms of the settlement agreement are summarized as follows. Plaintiffs seek Court preliminary approval and certification, for settlement purposes only, a class comprising two distinct groups: (1) the "Anixter Class," consisting of all non-exempt employees employed by Anixter Inc. or Anixter International Inc. in California who worked for Defendants from September 25, 2022, through February 10, 2025; and (2) the "Wesco Class," consisting of all non-exempt employees employed by Wesco International, Inc. and/or Wesco Distribution, Inc. in California who worked for Defendants from May 15, 2020, through February 10, 2025. The Settlement resolves claims for wage and hour violations, including allegations of failure to pay overtime, failure to provide meal and rest periods, failure to pay minimum wages and final wages, failure to provide accurate wage statements, failure to indemnify business expenses, and related claims under the California Labor Code and Unfair Competition Law.

Defendants have agreed to pay a Gross Settlement Amount of $1,250,000.00, which is subject to escalation if the total number of workweeks worked by class members exceeds 53,690 (representing a 10% increase above the baseline of 48,809 workweeks). In the event of such increase, Defendants may elect either to increase the Gross Settlement Amount proportionally by multiplying the excess workweeks by the Workweek Value of $25.61, or to terminate the class periods upon reaching 53,690 workweeks. This is a non-reversionary settlement, and Defendants shall pay the employer's share of all applicable taxes separate and apart from the Gross Settlement Amount.

Class Members shall receive *pro rata* distributions of the Net Settlement Fund based upon the total